

F. Eligibility List. When an eligible candidate is refused appointment by virtue of this Rule, the name of the candidate shall remain on the eligibility list for openings in the same classification, where no relative is employed, supervised by, or supervising the vacant position. In no case may an employee participate directly, or indirectly, in the recruitment or selection process for a position for which the employee's relative has filed an employment application.

G. Prospective Application. This Rule shall apply prospectively and is not intended to affect any employment in existence and in compliance with the City's Personnel Rules on the effective date hereof.

H. Discrimination. Any employment action, which must be taken pursuant to this Rule because of a problem with supervision, safety, security or morale, shall be taken in a non-discriminatory manner. Determinations made pursuant to this Rule shall be made on a case-by-case basis. In making any determination pursuant to this Rule, the Human Resources Director may take into account all relevant factors concerning each employee involved in a covered relationship, including job duties, history of employment and potential for advancement within the City service.

Rule 10 **Workplace Safety**

Each employee shall comply with CAL/OSHA safety laws, rules and regulations. All employees shall follow safe practices, use personal protective equipment as required, render every possible aid to safe operations and report all unsafe conditions or practices.

Rule 11 **No Smoking Policy**

Smoking is not allowed in City vehicles or within twenty (20) feet of any City facilities. Employees shall be especially attentive to the sensitivities of the public and fellow employees who may object to smoking. Management reserves the right to limit employees from leaving their work area to smoke except at break and lunch time. However, employees should use reason and discretion in the frequency of leaving the work area to smoke.

Rule 12 **Dress and Grooming Standards**

A. Statement. The City considers the presentation of its image to other agencies and the public at large to be extremely important. Since the City's product is service and excellent service can only be provided through its employees, the City seeks not only good performance and conduct from its employees, but also expects them to observe high standards in their personal presentation. It is expected that all employees dress in a manner consistent with good safety, hygiene, good taste, and the work environment and functions performed. Employees whose jobs require them to come in contact with other agencies or the public are expected to wear appropriate apparel. If an employee has questions about how these standards apply to him or her, the matter should be immediately raised with the employee's Department Director for consideration and determination. Failure to follow the dress and grooming standards contained in this Rule shall be grounds for discipline.

B. Non-Uniformed Office and Field Personnel.

1. Employees should dress and be groomed according to the work environment and functions of their position. The following personal appearance guidelines shall be followed:

a. Hair should be maintained so as not to interfere with job duties or jeopardize safety in the workplace;

b. All apparel shall be clean and in good condition. Examples of appropriate dress for office work may include: slacks, trousers, jackets, button shirts (including “Polo” type shirts), sweaters, skirts, blouses and dresses.

c. Denim jeans are appropriate for job classifications performing routine field assignments or tasks requiring physical labor (i.e., cleaning, moving furniture, equipment maintenance, filing for long-term storage), with prior approval of the Department Director.

2. Inappropriate dress includes but is not limited to: casual or souvenir T-shirts or sweatshirts, tank tops, warm up or jogging ensembles/exercise wear, shorts, spandex-like skin tight leggings, ripped, faded, bleached or revealing clothing. Clothing that is excessively tight, short or otherwise revealing is also considered inappropriate and shall not be worn to work.

C. Uniforms.

1. Those employees required to wear City issued uniforms shall wear their uniforms when at work. Uniforms shall not be worn when off duty, except for traveling to and from work. It is recognized that employees may have to make brief stops on the way to and from work to take care of personal business; however, uniforms shall not be worn in businesses or locations, which would create a negative impression, such as bars or nightclubs.

2. Uniforms shall be neat, clean and in good condition at the start of the work shift. They shall not be altered inappropriately and shall be worn as they are designed to be worn.

D. Tattoos and Piercings.

1. Tattoos. No visible tattoos are allowed anywhere on the head, face, or neck. Any visible tattoos on other areas of the body shall not be obscene, sexually explicit, discriminatory to any legally protected category (including but not limited to sex, race, religion, or national origin), extremist, and/or gang-related. No visible tattoos shall be larger than 4 by 6 inches. Any non-conforming tattoos will be covered with clothing, bandage or makeup while at work or removed.

2. Piercings. No objects, articles, jewelry or ornamentation of any kind shall be attached to or through the skin if visible on any body part including the tongue or any

part of the mouth. Any non-conforming piercing shall be removed, covered with a bandage, or replaced with a clear, plastic spacer.

SECTION 2: CLASSIFICATION, RECRUITMENT AND APPOINTMENT

Rule 13 Classification

A. Classification Plan. The Human Resources Director, or a person or agency employed for that purpose, shall ascertain and record the duties and responsibilities of all positions in the competitive service, and shall recommend a classification plan for such positions. The classification plan shall consist of classes of positions in the competitive service defined by class specifications, including the titles therefor. The classification plan shall be so developed and maintained that all positions substantially similar with respect to duties, responsibilities, authority and character of work are included within the same class, and that the same schedules of compensation may be made to apply with equity under similar working conditions to all positions in the same class. The classifications will be prepared and maintained by the Human Resources Director.

B. Adoption, Amendment and Revision of Plan. The classification plan shall be adopted by the City Council and may be amended from time to time. Amendments and revisions of the classification plan may be suggested by any Department Director and shall be submitted to the City Manager for consideration by the City Council.

C. Allocation of Positions. Following adoption of the classification plan, the Human Resources Director shall allocate every position in the competitive service to one (1) of the classes established by the plan.

D. New Positions. A new position shall not be created and filled until the classification plan has been amended to provide therefore and an appropriate employment list established for such position.

E. Reclassification. Positions, the assigned duties of which have changed materially, whether new or already created, may be allocated by the Human Resources Director to a more appropriate class, whether new or already created, upon approval by the City Manager. Reclassifications shall not be used for the purpose of avoiding restrictions concerning demotions and promotions, or to effect a change in salary in the absence of a significant change in assigned duties and responsibilities. Reclassifications shall not be used for the purpose of avoiding restrictions concerning demotions and promotions. The basis for reclassification shall be the gradual accretion of duties over a period of time.

F. Status of Employee Whose Position is Reclassified. If an occupied position is reclassified, the incumbent shall be affected as follows, except that if a probationary employee occupies the position, the employee must serve a probationary period in the new classification to attain regular status:

1. To a Lower Classification. When a position is reallocated to a lower classification, the incumbent shall:

- a. Be eligible to transfer to a position in the same classification;
- b. Be granted regular status in the lower classification; and
- c. Not incur a salary reduction. If the salary is greater than the “G” step of the lower classification, the employee’s salary will be Y-Rated.

2. To a Different Classification with the Same Salary Range. When a position is reclassified to a classification with the same salary range, the incumbent shall be paid the same salary but shall serve a probationary period.

3. To a Higher Classification. When a position has been reclassified to a higher classification, status should be granted in a higher classification, without examination, but with a probationary period.

4. Failure to Achieve the Higher Classification. If the employee fails the probationary period, the employee shall be returned to either his/her regular status of the position in the former classification or to a vacant position in a comparable classification. The employee is subject to layoff if no lower position is available.

G. Use of Class Title. Class titles are to be used in all personnel, accounting, budget, appropriation and financial records. No person will be appointed to, or employed in, a position in the competitive service under a title not included in the classification plan. Other job titles may be used as working titles.

H. Use of Class Specifications. Specifications are to be interpreted in their entirety and in relation to others in the classification plan. Particular phrases or examples are not to be isolated and treated as a full definition of the class. Specifications are deemed to be descriptive and explanatory of the kind of work performed and not necessarily inclusive of all duties performed.

Rule 14 **Management Employees**

A. Establishing Terms and Conditions of Employment for Management Employees. Except as specifically provided in these Rules, the following terms and conditions of employment are hereby adopted for management employees of the City.

1. City Manager Authority. The City Manager shall have the power to make appointments of individuals to management positions and shall retain full authority over their retention, discipline, dismissal and other terms and conditions of employment.

2. Salaries. Salaries of management employees shall be in accordance with the performance-based merit system established by the City Council.

3. Vacation Leave, Sick Leave, Management Leave and Other Vested and Non-Vested Leaves. Management employees shall accrue leave in accordance with any special provisions applicable to management employees in these Rules.

4. Retirement, Medical and Cafeteria Plan Benefits. Except as otherwise provided in these Rules, management employees shall receive those retirement, medical and cafeteria plan benefits on the same terms and conditions as those benefits are provided to regular employees.

5. Termination of Employment.

a. Management employees are at-will employees who serve at the pleasure of the City Manager and may be terminated at any time with or without cause and have no right to any pre- or post-termination due process or right to an evidentiary appeal.

b. Termination with Cause. In the event the employment of a management employee is terminated for just cause in accordance with Subparagraph 5.a above, the employee shall not be entitled to receive severance pay.

c. Termination for Any Other Reason; Without Cause. In the event a management employee is terminated for any reason other than for just cause, as defined in Subparagraph 5.b above, the employee will be paid a severance amount equal to one (1) month's salary, effective the date of termination.

6. Conditions of Employment. Except as otherwise provided in this Rule, the terms and conditions of employment of management employees shall be those prescribed in these Rules. Any special terms or conditions of management employee employment which have been directed by the City Council and confirmed in writing contained in that employee's personnel file on the effective date of these Rules, shall remain in effect until terminated by the mutual agreement of the employee and the City Manager.

Rule 15 Recruitment

A. Fair Employment Practices. The City is committed to providing equal employment opportunities for all individuals, regardless of race, religious creed, color, national origin, ancestry, physical disability, mental disability, medical condition, genetic information, marital status, sex, gender, gender identity, gender expression, age, sexual orientation, or military and veteran status or any other basis protected by law. Any technique or procedure used in recruitment and selection of employees shall be designed to measure only the job-related qualifications of applicants. No recruitment or selection technique shall be used which, in the opinion of the Human Resources Director, is not justifiably linked to job qualifications and successful job performance.

B. Goals.

1. The City is committed to equal employment and to compliance with Federal and State laws regarding equal employment.

2. The City intends to hire, train, compensate, assign, promote, discipline, and discharge employees on the basis of merit and fitness and not on any basis protected by law. Any technique or procedure used in recruitment and selection of employees shall be designed to measure only the job-related qualifications of applicants.

3. No City employee shall discriminate against any employee or applicant in recruitment, examination, appointment, hiring, training, promotion, retention, discipline on any basis protected by law.

C. Notification of Vacancy. Whenever a vacancy in the competitive service needs to be filled, the Department Director responsible for the vacant position shall submit to the Human Resources Director a request for approval to fill a position.

D. Job Announcements. All open and promotional examinations in the competitive service shall be publicized by posting job announcements in the City Hall, on official bulletin boards and by such other methods as the Human Resources Director deems advisable for recruitment from a geographic area as wide as is necessary to assure obtaining well-qualified candidates. The announcements shall specify the title and pay of the class for which the examination is announced, the nature of the work to be performed, preparation desirable for the performance of the work of a class, the manner of making application and other pertinent information. Qualification standards stated in the announcement shall be those established for the classification.

Announcements may be for one (1) examination or may be for open, continuous testing. In the latter instance, a single announcement without a filing deadline may be published. When the Human Resources Director determines that a sufficient number of applications have been received, the acceptance of applications will cease; and the examination will be closed. A job announcement shall not be construed as an offer of employment.

E. Application Forms. Applications shall be made as prescribed in the examination announcement. Application forms shall require information covering training, experience and other pertinent information, and may include certificates of one (1) or more examining physicians, references and fingerprints. The applicant must sign all applications.

F. Acceptance of Applications. Applications to take examinations must be filed on City application forms or as specified in the job announcement. Completed applications must be timely filed. Any qualified person may be admitted to an examination who, within the period prescribed in the public notice, has filed an application furnished by the Human Resources Department, and whose application has not been rejected for cause in accordance with these Rules, and who presents him/herself at the time and place designated for the examination.

G. Cancellation/Extensions. Examinations may be canceled or filing periods extended by the Human Resources Director for good cause.

H. Applicant Qualifications. Applicants for examinations must meet the qualification standards for the classification by the date set forth in the announcement, including

all licenses or certification requirements. Applicants may be required to provide proof of their education, training and experience.

I. Employment Qualification - Proof of Right to Work. In compliance with laws and regulations of the United States Department of Justice and the Immigration and Naturalization Service, the City requires that each person hired by the City complete Section I of the Employment Eligibility Verification Form I-9 to verify that the person is eligible for employment in the United States. Documentation must be produced within three (3) business days of hire or on the first day of any employment that is less than three (3) business days. Required documentation must be presented to the Human Resources Director.

J. Disqualification. The Human Resources Director has the authority to disqualify applicants, candidates or eligibles from employment consistent with the provisions of these Rules. The following shall constitute grounds for disqualification of an applicant, candidate or eligible:

1. Failure to meet any of the requirements or qualifications established for the examination as published in the announcement. An applicant shall be rejected, if he/she is physically or mentally unfit to perform the essential duties of the position to which he/she seeks appointment, if the City is unable to reasonably accommodate the applicant.

2. False statement of material fact or actual or attempted deception, fraud or misconduct in connection with the application or the examination. All applications must be signed and dated by the person applying.

3. Conviction (including pleas of guilty or *nolo contendere*) of a felony or misdemeanor except for misdemeanor marijuana-related convictions that are over two years old, or convictions that have been judicially sealed, eradicated, or expunged, if the Human Resources Director determines that the nature, date and circumstances of the offense has a rational relationship to the position for which the application is made.

4. Use or attempted use of political pressure or bribery to secure an advantage in an examination or appointment.

5. Medical evidence that the candidate uses controlled substances.

6. For any material cause which in the judgment of the Human Resources Director or designee would render the applicant unsuitable for the position, including a prior resignation from the City, termination from the City or a significant disciplinary action.

Whenever an application is rejected, the Human Resources Director shall give notice of such rejection to the applicant.

K. Pre-Employment Fitness for Duty Examinations and Drug Testing. For certain positions, in order to be eligible for employment with the City, candidates who have been granted a conditional offer of employment shall be required to pass a fitness for duty examination and drug testing consistent with applicable State and Federal laws.

L. Notice of Qualification. Applicants and candidates shall be sent written notice of the acceptance or rejection of their application and the results of their examination. Said notice shall be mailed to the address of record on the application filed for the examination. Defective applications may be returned to the applicant with notice to amend the same, providing the deadline for receiving applications has not expired.

M. Reasonable Accommodation. Absent undue hardship or direct threats to the health and safety of employees, the City provides employment-related reasonable accommodations to applicants to enable them to perform essential job functions.

N. Confidentiality of Applicant's Names. The name of an applicant or candidate shall not be made public except by permission of the applicant.

Rule 16 **Examinations**

A. Nature and Types of Examinations. The selection technique used in the examination process shall be job related and may include, but are not limited to, achievement and aptitude tests, other written tests, personal interviews, performance tests, evaluation of daily work performance, work samples, medical tests or any combination thereof.

B. Promotional Examinations. Promotional examinations may include any of the selection techniques mentioned in this Rule or any combination thereof. Only regular or probationary City employees who meet the requirements set forth in the job announcements may compete in promotional examinations. Promotional examinations may be conducted at the Human Resources Director's discretion.

C. Continuous Examinations. Open competitive examinations may be administered periodically for a single class, as the needs of the service require. Such examinations are open to all persons who possess the indicated minimum qualifications as set forth in the job announcement. Names shall be placed on employment lists, and shall remain on such lists, as prescribed in these Rules.

D. Conduct of Examinations. All examinations shall be administered or arranged for by the Human Resources Department.

E. Qualifying Grade or Rating. In all examinations, the minimum grade or standing for which eligibility may be earned shall be based upon all competitive factors of the examination. Failure to earn a qualifying score in one (1) part of the examination may be grounds for declaring the applicant as failing in the entire examination or as not qualified to compete in subsequent parts of an examination.

F. Notification of Examination Results. Each candidate in a written examination shall be given written notice of the results thereof, and if passing, of his/her final earned score and/or rank on the employment list.

Rule 17 **Reasonable Accommodation and Fitness for Duty Examination Procedures**

A. Reasonable Accommodation and Interactive Process. An employee who desires a reasonable accommodation in order to perform essential job functions should make such a request in writing to the Human Resources Director. The request must identify: (a) the job-related functions at issue; and (b) the desired accommodation(s). Following receipt of the request, the City may require additional information, such as reasonable documentation of the existence of a disability and/or require the employee to undergo a fitness for duty examination. After receipt of reasonable documentation of disability and/or a fitness for duty report, the City will arrange for a discussion, in person or via telephone conference call, with the employee, and his/her representative(s), if any. The purpose of the discussion is to work in good faith to fully discuss all feasible potential reasonable accommodations. The City determines, in its sole discretion, whether reasonable accommodation(s) can be made, and the type of accommodation(s) to provide. The City will not provide accommodation(s) that would pose an undue hardship upon City finances or operations, or that would endanger the health or safety of the employee or others. The City will inform the employee of its decision as to reasonable accommodation(s) in writing.

B. Fitness for Duty Examination. An employee may be required to undergo a fitness for duty examination at a time designated by the Human Resources Director at a City-designated facility at the City's expense, to determine whether the employee is able to perform the essential functions of his/her position when there is significant evidence that the employee's ability to perform one or more essential functions of his/her job has declined; or could cause a reasonable person to question whether an employee is still capable of performing one or more of his/her essential job duties, or is still capable of performing those duties in a manner that does not harm him or herself or others. The City may take appropriate action based upon the results of the fitness for duty examination. The City may also take disciplinary action against any employee who refuses to comply with the City's requirement that he/she undergo a fitness for duty examination.

C. Applicants, Promotions or Transfers. For certain positions, after a conditional offer has been extended to an applicant, or an employee eligible for a promotion or transfer, the City may require the individual to submit to a fitness for duty examination that is job-related; necessary for efficient operations of the agency; and required of all applicants for the job classification. If the job applicant or candidate for promotion or transfer is a qualified individual with a disability under the Americans with Disabilities Act ("ADA") or California Fair Employment and Housing Act ("FEHA"), the City will engage in an interactive process with the job applicant or candidate and consider any request for reasonable accommodation by the job applicant or candidate consistent with the requirements of the ADA and/or FEHA.

D. Procedure. Fitness for duty examinations shall be conducted in accordance with the following:

1. All fitness for duty examinations shall be job-related, and necessary for efficient operations of the City.

2. The fitness for duty examination of a job applicant or an existing employee seeking a promotion will occur only after a conditional offer of employment or promotion is made and when required of all applicants for the job classification.

3. Pre-employment tests for illegal drugs and alcohol may be administered in conjunction with a medical examination for new hires and re-hires as part of the application process, as set forth in Paragraph K below.

E. Absence Due to Illness or Incapacity.

Any employee who returns to work after an absence in excess of three (3) consecutive work shifts due to illness or incapacity or who demonstrates a pattern of absences (such as repeated absences the day before or after weekends), may be required by the Human Resources Director to provide a return to work certification from the employee's treating physician or other health care provider confirming there was a medical reason for the employee's absence. Nothing herein shall preclude the City from requiring a fitness for duty examination.

F. Confidentiality of Medical Information. Medical information will be kept confidential, on separate forms and in separate locked medical files, and shall be reviewed only to assess whether the applicant or employee has the ability to perform the functions of the job, with or without reasonable accommodation; or whether the employee may pose a direct threat to himself/herself and/or to others; to determine whether the employee is fit for duty; to assist in providing reasonable accommodation; to provide first aid as necessary; for insurance purposes; and to comply with other provisions of Federal and/or State law.

G. Pre-Employment Drug Testing. The City is committed to providing a safe, effective and productive work force and to comply with the Drug-Free Workplace Act of 1988.

1. For certain positions, after a conditional offer of employment is provided, the City may require an applicant to submit to pre-employment drug testing.

2. The City's drug testing policy will comply with all applicable provisions of Federal and State law, including but not limited to, confidentiality, privacy and testing methodology.

3. The City shall pay for any pre-employment drug testing required under this Rule.

H. Non-Discrimination. All medical examinations shall be undertaken in accordance with the ADA and the FEHA, with respect to job applicants and employees with disabilities. The City does not discriminate against job applicants or employees on the basis of disability.

I. Non-Exclusivity. This Rule shall not preclude the City from requiring medical examinations under circumstances otherwise permitted or authorized under Federal or State law.

Rule 18 **Employment Lists**

A. Employment (Eligibility) Lists - General Provisions. The Human Resources Department shall prepare and certify the employment eligibility list to the City Manager and appropriate Department Director as soon as possible after the completion of an examination. The list shall be a list of persons who have taken an examination for a City position and have qualified for said position. The list shall contain two (2) more names than the positions available of persons successfully passing the examination, arranged in order of final scores earned, from the highest to the lowest passing score. The final score shall be determined by the total of the scores earned by each applicant for each part of the examination, based on the relative value assigned to each part of the examination. Whenever identical scores are earned, names shall be arranged in alphabetical order; and no candidate shall receive any additional consideration because of this arbitrary manner of listing applicants.

B. Employees Laid Off Given Preference. Upon written application to the Human Resources Director, an employee laid off shall be entitled to have his/her name entered in first place upon the employment list, but not promotional list, for the class, or lower class, to which his/her former position was allocated. If more than one (1) name is given such preference, the position on the list shall be in inverse order of layoff.

C. Duration of Lists. Employment lists other than those resulting from a continuous examination shall remain in effect for one (1) year, or until exhausted, whichever occurs first, but may be terminated or extended by the City Manager for additional periods; but in no event shall an employment list remain in effect for more than two (2) years. Open competitive lists created as a result of examination(s) shall remain in effect for not more than one (1) year after the last administration of the examination, or until exhausted. Names placed on open competitive lists shall be merged with any others already on the list in order of final scores and shall remain on the list for not more than one (1) year.

D. Removal of Names from Lists. The Human Resources Director shall remove the name of any person appearing on an open competitive or promotional eligible list for any of the following reasons:

1. Upon written notice from an eligible person declining appointment or requesting removal of his/her name;
2. If an eligible person fails to respond within ten (10) business days to a notice of certification mailed to his/her last known address;
3. If the results reported in the background investigation are unsatisfactory;
4. Failure to properly complete, sign or timely file the required application form and supplemental materials, if any;
5. Fraudulent conduct or false statements by an applicant or others with the applicant's knowledge on any application or in any phase of the selection process;

6. Failure to meet any of the minimum requirements or qualifications for the position;
7. Failure to cooperate in the selection process;
8. Failure to attend any appointment; or
9. If employment would not be in the best interests of the City.

If less than three (3) eligible persons remain on the open competitive or promotional eligible list, the Human Resources Director may cancel the list and establish a new one.

The person affected by the foregoing shall be notified of the removal of his/her name by a notice mailed to his/her last known address. The names of persons on a promotional list who resign from the classified service shall automatically be dropped from such list.

Rule 19 **Types of Appointment/Appointment Process**

A. Types of Appointment. All vacancies in the competitive service shall be filled by transfer, promotion, re-employment, reinstatement or from eligible applicants certified by the Human Resources Department from an appropriate employment list, if available. In the absence of persons eligible for appointment, provisional appointments may be made in accordance with these Rules. In addition, the City may make seasonal, temporary and emergency appointments.

B. Certification of Eligible Applicants. Insofar as practical and consistent with the best interests of the City, vacancies in the competitive service shall be filled by promotion. If in the opinion of the Appointing Authority, it is in the best interest of the City to fill a vacancy by an open competitive examination instead of a closed promotional examination, then the Human Resources Department will seek applications for the vacancy and arrange for an open competitive examination. If appointment is to be made from an employment or promotional list, the names of all persons willing to accept employment shall be certified.

C. Veteran's Preference. Preference may be given to candidates who are veterans, as defined in the California Government Code, if the candidates to be selected are identically qualified.

D. Appointment. The Department Director shall select the applicant to be appointed. The Human Resources Department shall conduct a background investigation. The name of the applicant shall then be sent to the City Manager for appointment. Upon approval of the City Manager, the Human Resources Department will make a final or contingent offer of employment to the applicant. The offer may be contingent upon the applicant's successfully passing a fitness for duty examination or further background investigation. The person accepting the appointment shall report to the Human Resources Department for processing on or before the day of appointment. He/she shall be deemed appointed upon signing the appropriate personnel action forms. The following types of appointments may be made:

1. Regular Employee